

HOUSE BILL 1205

By Kumar

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 39; Title 53; Title 63 and Title 68, relative to
healthcare services.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 6, Part 2, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Immediate family" means a physician's or podiatrist's spouse, parent, child, sibling, or another individual in relation to whom a physician's or podiatrist's personal or emotional involvement may render that physician or podiatrist unable to exercise detached professional judgment in reaching diagnostic or therapeutic decisions;

(2) "Physician" means a physician licensed under this chapter or chapter 9 of this title;

(3) "Podiatrist" has the same meaning as defined in § 63-3-101; and

(4) "Scheduled drug" means a drug, substance, or immediate precursor in Schedules I through V of the federal Controlled Substances Act (21 U.S.C. § 812).

(b) A physician or podiatrist shall maintain records of all treatment provided pursuant to this section.

(c) A physician or podiatrist shall not prescribe, dispense, or administer medication for, or otherwise treat, the physician's or podiatrist's own self or immediate family, except in minor, self-limited, short-term, or urgent, emergency situations.

(d) Notwithstanding subsection (c) or (e), a physician or podiatrist shall not prescribe, dispense, or administer a scheduled drug to the physician's or podiatrist's own self or for immediate family.

(e) Notwithstanding subsection (c), a physician may prescribe, dispense, or administer medication for, or otherwise treat, immediate family within the physician's regular scope of practice if there is no other physician offering healthcare services at a location within thirty (30) miles of the physician's primary practice site.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.